

PETITION TO EXPUNGE CRIMINAL HISTORY RECORD INFORMATION (NEB. REV. STAT. SEC. 29-3523(9))

IN THE DISTRICT COURT OF ..... COUNTY, NEBRASKA

(the county in which the arrest occurred - the recorded controlling decision for this route sets venue in that county's district court, and this petition is filed as a new civil matter there)

Maria-Alejandra O'Shaughnessy-Whitfield,  
PETITIONER,

v.

THE COUNTY ATTORNEY OF THE COUNTY NAMED ABOVE,  
RESPONDENT.

Case No. .... (the clerk assigns it at filing)

PETITION TO EXPUNGE CRIMINAL HISTORY RECORD INFORMATION  
(NEB. REV. STAT. Sec. 29-3523(9) - ARREST DUE TO LAW ENFORCEMENT AGENCY ERROR)

1. The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, files this petition under Neb. Rev. Stat. Sec. 29-3523(9), and states that the petitioner was arrested due to the error of a law enforcement agency.

2. The petitioner further states:

Date of the arrest:

.....

Agency that made the arrest:

.....

Whether charges were ever filed, and the case number if they were:

.....

3. In your own words, what the agency got wrong (state only what you know first-hand; nothing on these lines is written for you):

.....

.....

.....

4. Criminal history record information related to the arrest described above exists.

5. Under Neb. Rev. Stat. Sec. 29-3523(9), the court may order the criminal history record information related to the arrest expunged upon a showing, by clear and convincing evidence, that the arrest was due to error by the arresting law enforcement agency. This petition does not characterise the petitioner's

evidence; whether that showing is met is for the court.

6. WHEREFORE, the petitioner requests that the Court order the criminal history record information related to the arrest described above expunged, pursuant to Neb. Rev. Stat. Sec. 29-3523(9).

DATE ..... SIGNATURE OF PETITIONER .....

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

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69361-2214

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MONEY. The district court civil filing fee for this petition is not established by any source this packet is built from - ask the clerk of the district court of the county of arrest what fee applies before filing. A fee waiver is available in principle under Neb. Rev. Stat. Sec. 25-2301.01 if you cannot pay it.

Routes: obligation:track-pathway:NE:ne-expunge-le-error:law-enforcement-error-expungement

## SERVING THE COUNTY ATTORNEY

For: Maria-Alejandra O'Shaughnessy-Whitfield

**WHO IS SERVED.** The county attorney of the county of arrest is the respondent to this petition. That is the recorded controlling decision for this route.

**HOW SERVICE MUST HAPPEN.** The recorded controlling decision is that this petition opens a new civil case and must be SERVED as a new civil action, using the summons and service mechanism that applies to a political subdivision or public officer under Nebraska civil procedure. A courtesy copy alone is not a substitute for formal service when a new civil case has been opened.

**WHAT THIS PAGE DOES NOT TELL YOU.** The exact local mechanics - e-filing, how a summons is issued, and sheriff or other service practices - vary by county and are not established by any source this packet is built from. Before you file, ask the clerk of the district court of the county of arrest how a new civil action is served on the county attorney there, and use exactly that method.

**AFTER SERVICE.** The county attorney may respond. If the respondent appears and contests the petition, stop: self-help ends there, and the attorney-review page of this packet explains why.

This page is not proof of service and does not say that anything has been served.

Routes: obligation:track-pathway:NE:ne-expunge-le-error:law-enforcement-error-expungement

## WHY YOU SHOULD HAVE AN ATTORNEY LOOK AT THIS BEFORE FILING

For: Maria-Alejandra O'Shaughnessy-Whitfield

THE BURDEN IS HIGH. Under Neb. Rev. Stat. Sec. 29-3523(9) the court may order the record expunged on clear and convincing evidence that the arrest was due to the error of the arresting agency. Clear and convincing is a demanding standard, the respondent is a public office, and the proceeding is adversarial.

THE RECOMMENDATION. Have an attorney review this petition and your evidence BEFORE you file it. That is a strong recommendation and not a gate: the packet is prepared either way, and filing without review is your choice.

STOP AND TAKE THIS PACKET TO A LAWYER OR LEGAL-AID OFFICE, INSTEAD OF FILING, IF ANY OF THESE IS TRUE:

- you cannot say, concretely, what the agency got wrong;
- you cannot identify the agency that arrested you;
- the arrest was lawful and simply did not lead to charges - that is a different route (Nebraska's automatic non-conviction treatment), not this petition;
- the real cause was someone else's use of your identity, which is a different problem this petition does not decide;
- the county attorney has appeared and contests the petition;
- the court sets an evidentiary hearing and you would be presenting evidence alone.

ONE WORD OF VOCABULARY. This is the only Nebraska adult route that EXPUNGES a record. Every other Nebraska route uses different relief with different words, and mixing them up in a filing invites the wrong questions.

Routes: obligation:track-pathway:NE:ne-expunge-le-error:law-enforcement-error-expungement